

ORIGINAL

(S E R V E D)
(JANUARY 5, 1993)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

January 4, 1993

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

COMPLAINANTS' REQUEST FOR AFFIRMATIVE RELIEF DENIED

On December 17, 1992, complainants and respondents exchanged preliminary lists of hostile and cross-examination witnesses, as agreed upon in the proposed schedule adopted by order dated December 16, 1992. Respondents, however, submitted more than witness lists. In addition, respondents' submissions as to (1) the complainants' use of hostile witnesses at the hearing; and (2) the venue(s) of the hearing are termed "the equivalent of motions" by complainants.

The new schedule in this proceeding, adopted December 16, 1992, was the result of extensive negotiations between complainants and respondents in which a specific time was agreed upon for addressing the issues of hostile witnesses and venue(s). Complainants urge that respondents' submission of December 17, 1992, breaches that agreement and is a transparent attempt to obtain two opportunities to brief these issues before the Judge.

Complainants therefore object and request an order (1) acknowledging receipt of respondents' submissions (motions) of December 17, 1992, which, under the schedule adopted by the Judge's order of December 16, 1992, were not to have been submitted until January 22, 1993, and January 29, 1993, on the issues of venue(s) and objections to the use of hostile witnesses, respectively; (2) prohibiting respondents from making additional submissions on these two issues; and (3) stating that any reply to this response of complainants to the respondents' motions, which seeks to circumvent the restriction on additional submissions on these matters, be disregarded and prevented from being entered in the record.

Complainants' Argument

Soon after the filing of respondents' written direct case submissions, complainants and respondents began a series of meetings to discuss the schedule in this proceeding. Complainants and respondents therefore began discussing a schedule to be proposed.

Complainants were not aware with certainty that respondents intended to object formally to complainants' use of hostile witnesses until the discussions regarding the schedule began. Hostile witnesses are critical to the proof of complainants' case.

Complainants relied upon information provided by APL and Sea-Land, which can only be presented through witnesses of APL and Sea-Land. Complainants could not previously have included the testimony of these witnesses as part of their written direct case.

Also, during these discussions, complainants reiterated their desire to hold a portion of the hearing in Guam. Respondents objected to holding any part of the hearing in Guam, disregarding complainants' concerns for the convenience of the Guam-based witnesses. At the same time, respondents argued that a portion of the hearing should be held in the San Francisco Bay area for the convenience of their witnesses.

To facilitate reaching an agreement in the proposed schedule, the parties essentially agreed to disagree on these two issues, and to establish a time within the schedule for addressing these potential disagreements. It was complainants' understanding that by doing so, these matters might be resolved amicably between the parties before the dates set forth in the schedule, eliminating the need to involve the Presiding Officer. Respondents' submission of December 17, 1992, however, virtually guarantees that these matters will come before the Judge. What respondents have now done, prematurely, is the equivalent of motions which were contemplated to be filed, according to the agreed schedule, more than a month from now.

To try to justify their premature filing, respondents claim that they could not submit a conditional list of hostile and cross-examination witnesses without the six and a half pages of accompanying argument. The schedule explicitly makes the initial exchange of witnesses without the six and a half pages of accompanying argument. The schedule explicitly makes the initial exchange of witness lists conditional for all parties and provides for the

submission of a "final list of witnesses included on the list submitted December 17, 1992, who will actually be called to testify." See March 5, 1993, entry in the schedule attached to the December 16, 1992, order. Quite obviously, respondents' list is not their final list which is not due until March 5, 1993. The purpose of the March 5, 1993, deadline is to provide the time for submission of final witness lists after all negotiations on stipulations and procedural disputes are resolved. Thus, respondents did not need to include the six and a half page "explanation" and it is only intended as an effort to influence the Judge prematurely. Respondents must not be allowed two "bites at the apple." Fairness dictates that respondents be limited to the one opportunity to present these issues agreed to in the schedule. Respondents have now done so. They should be precluded from having a second opportunity according to the agreement.

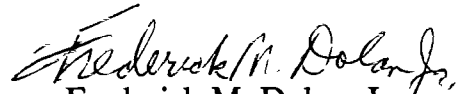
Sea-Land Service, Inc., filed a reply which American President, Lines, Ltd., endorsed.

Discussion and Conclusions

Respondents' joint (a) initial identification of hostile witnesses and (b) witnesses to be cross-examined requested no relief, order, or ruling. It does give notice of their preliminary position as to hostile witnesses and also their view as to where the hearing should be held. These matters need full discussion and exchange of views so that all the various ramifications may be contemplated and understood and the best solution for all reached. With that goal in mind it is hoped that, as complainants state, "these matters might be resolved amicably." In the circumstances complainants' request for relief will be denied.

IT IS ORDERED:

Complainants' requests (1) to designate respondents' submissions of December 17, 1992, as a motion, (2) to prohibit respondents from making any additional submissions as to venue, and objections to use of hostile witnesses, and (3) to strike respondent's reply are denied.


Frederick M. Dolan, Jr.
Administrative Law Judge